India Act could only be exercised as an ‘emergency’ for six months. After this, the tribunal would be functus officio. This is how the Lahore Conspiracy Case began on 5 May 1930. The 457 prosecution witnesses who were due to give evidence thereafter were not presented for cross-examination to the defence counsel. Only one of the five ‘approvers’ (i.e., ‘super-grasses’) was presented for cross-examination. Within two-weeks, two of the three judges had been sacked. Justice Coldstream was removed because he presided over the police beating of defendants in court when he took grave exception to their singing a revolutionary song in court. Justice Agha Haider, the only Indian judge, was sacked for not supporting such brutality. When prosecution counsel Carden Noad went to see him at his house (itself a breach of etiquette), Agha Haider reprimanded him with the words, ‘I am a judge, not a butcher.’ The Lahore Bar condemned the proceedings. They made it clear that the ordinance was ultra vires and invalid. There was ‘no justification whatsoever for depriving the High Court of its power of hearing the appeal from the final order of the Special Tribunal . . .’ Unsurprisingly, for five months, from May 1930 until the sentence of death on 7 October 1930, the accused refused to attend court. In the end, when the tribunal judgment came and handed down the sentence of death, it could not be challenged. There was no right of appeal to the Lahore High Court.

The full implications of the Lahore Ordinance III of 1930 have rarely been understood. It was never meant for the creation of a judicial tribunal. The power did not exist in the ordinance for this to be done. Lord Irwin must have known that. But the reasons Lord Irwin gave for promulgating the ordinance were poor. His statement only has four paragraphs. He begins by reasoning that ‘[t]wo of the accused had resorted to hunger strike before commencement . . .’ and that ‘[a] number of others followed the same course shortly afterwards with the result that by the 26 July 1929, the case had to be adjourned owing to some of the accused being unfit to attend Court’ (at para. 2). Trial courts, however, have to deal with all kinds of disruptive behaviour. This can come from intrepid lawyers or from obstructive defendants. Not infrequently, it is both. Some of it is quite